

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Tsui	Team: Squad #15	CCRB Case #: 202105141	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 08/22/2021 9:34 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/22/2023	Precinct: 45		
Date/Time CV Reported Fri, 08/27/2021 5:37 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 08/27/2021 5:37 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Ryan Zelman	04748	965911	045 PCT
2. POM Daniel Lonergan	10179	956855	045 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Eliza Hernandez	19696	967918	045 PCT
2. POM Jonathan Martinez	05245	965790	045 PCT
3. POM Jonathan Gonzalez	23550	968454	045 PCT
4. POM Matthew Djaafar	05906	964491	045 PCT
5. POM Driljan Rugovac	19389	959684	045 PCT
6. POM Antonio Vaccaro	11210	968857	045 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . POM Ryan Zelman	Abuse: Police Officer Ryan Zelman threatened § 87(2)(b) with the use of force.	A . Substantiated
B . POM Ryan Zelman	Discourtesy: Police Officer Ryan Zelman spoke discourteously to § 87(2)(b)	B . Substantiated
C . POM Ryan Zelman	Force: Police Officer Ryan Zelman used physical force against § 87(2)(b)	C . Substantiated
D . POM Daniel Lonergan	Discourtesy: Police Officer Daniel Lonergan spoke discourteously to § 87(2)(b)	D . Substantiated
E . POM Ryan Zelman	Abuse: Police Officer Ryan Zelman forcibly removed § 87(2)(b) to the hospital.	E . Exonerated

Case Summary

On August 27, 2021, § 87(2)(b) filed this complaint with the CCRB online.

On August 22, 2021, at approximately 9:34 PM, § 87(2)(b) called 911 from her § 87(2)(b) floor apartment located at § 87(2)(b) in the Bronx, and reported that her son, § 87(2)(b) was schizophrenic and was not taking his psychiatric medication. Police Officer Ryan Zelman, Police Officer Daniel Lonergan, Police Officer Jonathan Martinez and other officers from the 45th Precinct responded to the location, where § 87(2)(b) and § 87(2)(b) resided. § 87(2)(b) led the officers upstairs to § 87(2)(b) bedroom. PO Zelman knocked § 87(2)(b) door, and he answered. § 87(2)(b) invited PO Zelman into his bedroom to watch a movie and at this time, PO Martinez followed PO Zelman inside the bedroom. § 87(2)(b) told the officer that he only wanted one person in his bedroom at a time. § 87(2)(b) walked over to PO Martinez, raised his hand at his chest and grabbed the door. PO Zelman and other officers pulled § 87(2)(b) to the bed. PO Zelman unholstered his Taser and told § 87(2)(b) “You will get Tased. You will fucking get Tased” (**Allegation A: Abuse of Authority, substantiated; Allegation B: Discourtesy, substantiated**). PO Zelman, PO Lonergan, and other officers held § 87(2)(b) to the bed and attempted to restrain him. PO Zelman punched § 87(2)(b) in the head (**Allegation C: Force, substantiated**). PO Zelman placed handcuffs on § 87(2)(b) and the officers stood him up. § 87(2)(b) lunged his body towards PO Zelman. The officers restrained § 87(2)(b). PO Lonergan asked him, “Are you out of your fucking mind, bro” (**Allegation D: Discourtesy, substantiated**). PO Zelman escorted § 87(2)(b) to the living room and § 87(2)(b) spoke with an EMS worker. PO Zelman escorted § 87(2)(b) onto an ambulance, and he was treated at § 87(2)(b) Hospital (**Allegation E: Abuse of Authority, exonerated**).

There were no arrests made or summonses issued.

The investigation received BWC video footage (BR9) related to this incident for PO Zelman, PO Lonergan, PO Hernandez, PO Gonzalez, PO Djaafar, PO Vaccaro, and PO Rugova and is documented in IA #36.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Ryan Zelman threatened § 87(2)(b) with the use of force.

Allegation (B) Discourtesy: Police Officer Ryan Zelman spoke discourteously to § 87(2)(b).

It is undisputed that § 87(2)(b) called 911(BR4) to report that § 87(2)(b) was schizophrenic, refused to take medication and had burned something inside his room earlier in the day. § 87(2)(b) requested EMS to her apartment to evaluate § 87(2)(b). PO Zelman, Lonergan and other officers from the 45th Precinct responded to the location before EMS, and § 87(2)(b) greeted the officers at her front door. § 87(2)(b) told officers that § 87(2)(b) was not in possession of any weapons and was not violent. She invited the officers inside. § 87(2)(b) walked PO Zelman and the officers to § 87(2)(b) bedroom door. § 87(2)(b) told PO Zelman that § 87(2)(b) was inside. PO Zelman instructed § 87(2)(b) to open his door and he did. PO Zelman asked § 87(2)(b) to step out of his bedroom, and he refused. § 87(2)(b) told PO Zelman that he was watching a movie and that he could join him if he wanted. PO Zelman walked into the bedroom. PO Martinez immediately followed inside. The officers went on to physically subdue § 87(2)(b) and hold him in custody until EMS arrived on-scene. After EMS examined § 87(2)(b) they transported him to § 87(2)(b) Hospital.

§ 87(2)(b) stated (BR1) that when PO Zelman was in front of § 87(2)(b) bedroom door, she stood in the living room, and was behind PO Lonergan, PO Hernandez, PO Gonzalez, PO Djaafar, PO Vaccaro, and PO Rugova. In the front, PO Zelman told § 87(2)(b) that the police wanted to speak to him. § 87(2)(b) told PO Zelman that there was no need for conversation. When § 87(2)(b) opened the door, § 87(2)(b) was still behind all the officers and could not observe what § 87(2)(b) was doing. § 87(2)(b) heard § 87(2)(b) tell officers to exit his bedroom and at this time, some of the officer entered § 87(2)(b) bedroom. § 87(2)(b) suspected that officers entered the bedroom to restrain § 87(2)(b) however she did not know why. § 87(2)(b) did not hear any officer threaten or speak discourteously with § 87(2)(b).

The investigation was unable to obtain a statement from § 87(2)(b) (BR5, BR6, BR7).

PO Zelman (PO2) and PO Lonergan's statements (PO3) were mostly similar. PO Lonergan did not observe any fire or smell an odor of smoke inside the apartment. Both officers stated that they were informed by the police dispatcher that EMS was called to the location; however, an ambulance was not present at the time of the officers' arrival. PO Zelman stated that § 87(2)(b) did not appear coherent and "in the right mental state" because § 87(2)(b) kept saying that the police were there to bother and harass him. § 87(2)(b) told PO Zelman that the situation "was not funny." PO Zelman did not know what § 87(2)(b) meant. § 87(2)(b) told PO Zelman that he was watching a movie and invited PO Zelman to join him in his bedroom. PO Zelman walked inside § 87(2)(b) bedroom. PO Martinez followed him inside because it was unsafe for PO Zelman to be alone with § 87(2)(b). At this time, § 87(2)(b) lunged his body at PO Martinez's chest with one hand and attempted to push the bedroom door shut with his other hand. PO Zelman moved to restrain § 87(2)(b). Both officers stated that their goal was to get § 87(2)(b) compliance and for him speak with EMS. PO Zelman did not recall whether he was able to tell § 87(2)(b) that he wanted him to speak with EMS before § 87(2)(b) approached PO Martinez at the door. The officers did not state whether they believed § 87(2)(b) was a danger to himself or others.

PO Zelman stated that after § 87(2)(b) lunged his body at PO Martinez, he grabbed § 87(2)(b) right arm. PO Lonergan and PO Gonzalez also entered the bedroom. PO Zelman instructed § 87(2)(b) to put his hands to his back and unholstered his Taser. PO Zelman stated that he told § 87(2)(b) "You will get Tased. You will fucking get Tased," because a Taser was an effective tool to overcome active resistance. PO Zelman stated that he used profanity when speaking to § 87(2)(b) because it was an intense situation, and that the use of profanity increases the level of urgency and authority of his command for § 87(2)(b) to put his hands behind his back. § 87(2)(b) told PO Zelman to use the Taser on him. PO Zelman did not ultimately use the Taser.

According to the 911 (BR4) call made by § 87(2)(b) she reported to the operator that § 87(2)(b) is schizophrenic and had not been taking his psychiatric medication. § 87(2)(b) requested an ambulance to the location to give § 87(2)(b) a psychological evaluation. § 87(2)(b) stated that § 87(2)(b) was not violent and was not in possession of any weapons. § 87(2)(b) stated that § 87(2)(b) lit an object on fire in his bedroom and there was an odor of smoke earlier in the day.

According to the radio communication (BR4) between the dispatcher and officers, the officers were informed that there was an emotionally disturbed person (EDP) inside the private house located at § 87(2)(b) in the Bronx. The dispatcher stated that the EDP was a thirty-two-year-old male who was non-violent, was not in possession of any weapons and did not have a psychiatric history. The dispatcher also stated that § 87(2)(b) was off his medication.

According to PO Djaafar's BWC video (BR9), he was the first officer to walk up to the front door. At timestamp 1:10, § 87(2)(b) opens the front door. At 1:16, § 87(2)(b) tells PO Djaafar that § 87(2)(b).

§ 87(2)(b) stopped taking his medication and that he has schizophrenia. At timestamp 1:23, PO Zelman walks up to the front door. PO Djaafar asks § 87(2)(b) if there are any weapons inside her apartment. § 87(2)(b) says no.

According to PO Zelman's BWC video (BR9), at timestamp 2:09, § 87(2)(b) approaches § 87(2)(b) bedroom door, which was closed. § 87(2)(b) calls out to § 87(2)(b) by name. § 87(2)(b) yells "Get the fuck away from me. Get the fuck away from me. Get the fuck away from me." At timestamp 2:20, PO Zelman knocks on § 87(2)(b) door and announces that the police are present. PO Zelman tells § 87(2)(b) that he wants to talk to him. § 87(2)(b) asks PO Zelman why. § 87(2)(b) tells PO Zelman that he will not come out of his room to talk with him. At timestamp 2:25, PO Zelman asks § 87(2)(b) to open his door. § 87(2)(b) complies, and says "Oh, I don't care." At timestamp 2:45, § 87(2)(b) tells officers that he "is not amused" and that he was watching a movie. PO Zelman tells § 87(2)(b) that he does not think the situation is amusing. At timestamp 2:54, § 87(2)(b) tells PO Zelman, "You don't have to talk to me about anything, but I'm likely to sue the shit out of you if you harass me further from here. At timestamp 3:00, § 87(2)(b) attempts to close the bedroom door. PO Zelman holds it open and ask § 87(2)(b) to step out of the room. § 87(2)(b) tells PO Zelman, "I'm not having a conversation" three times consecutively. At timestamp 3:12, § 87(2)(b) tells PO Zelman, "I don't think anything is funny." PO Zelman tells § 87(2)(b) that no one is laughing. At timestamp 3:25, § 87(2)(b) tells PO Zelman, "I'm suing the shit out of you. This is not funny to me." At timestamp 3:42, PO Zelman instructs § 87(2)(b) to sit on a desk chair in his bedroom. § 87(2)(b) tells PO Zelman that he was laying down prior to the police's arrival. At timestamp 3:53, PO Zelman tells § 87(2)(b) that the police were at his apartment because they received a call that he was off his medication. § 87(2)(b) tells PO Zelman that he is not funny. At timestamp 3:59, PO Zelman asks § 87(2)(b) "Have you been diagnosed with something?" § 87(2)(b) asks PO Zelman, "Are you here to bother me?" At timestamp 4:02, PO Zelman tells § 87(2)(b) "We're here to talk to you." At timestamp 4:06, § 87(2)(b) tells PO Zelman, "That's none of your business. I don't care. I haven't got into any disputes or anything." § 87(2)(b) tells PO Zelman to "Get the fuck out." At timestamp 4:10, PO Zelman tells § 87(2)(b) no, and that the officers are there to talk to him. At timestamp 4:22, § 87(2)(b) says, "I'm watching a movie. If you want to join me. Sit down and join me." PO Zelman walks into § 87(2)(b) bedroom. PO Martinez follows him inside. At timestamp 4:27, PO Zelman tells § 87(2)(b) that § 87(2)(b) called the police. At this time, § 87(2)(b) tells PO Martinez that he only wants one officer in his bedroom at a time. At timestamp 4:33, § 87(2)(b) raises both arms and gestures PO Martinez to leave his bedroom. § 87(2)(b) tells PO Martinez to close his bedroom door. At timestamp 4:30, § 87(2)(b) approaches PO Martinez with his hands in the air. § 87(2)(b) moves his right arm towards PO Martinez's right shoulder. PO Martinez tells § 87(2)(b) to not touch him. § 87(2)(b) moves his left arm towards the bedroom door. At timestamp 4:33, § 87(2)(b) walks towards PO Martinez and tells him to close the door. PO Martinez tells § 87(2)(b) "No." § 87(2)(b) approaches PO Martinez with his right hand held in front of him. PO Martinez puts his left arm up between himself and § 87(2)(b). § 87(2)(b) reaches his left arm over to the back of his bedroom door. At timestamp 4:35, PO Zelman grabs § 87(2)(b) right arm, and tells § 87(2)(b) to "Put his hand behind his back," twice. § 87(2)(b) moves his arm in a circular motion to loosen PO Zelman's grip. At timestamp 4:38 PO Martinez attempts to hold both of § 87(2)(b) arms while he sits on the bed. § 87(2)(b) moves his arms to the front of his body and pulls his arms away from PO Martinez. § 87(2)(b) tenses his body and squares and extends his shoulders forward. PO Zelman unholsters his Taser, points it at § 87(2)(b) and tells him, "You will get Tased. You will fucking get Tased." PO Zelman instructs § 87(2)(b) to put his hands behind his back. PO Zelman point his Taser with the flashlight on at § 87(2)(b) for approximately eight seconds.

According to PO Martinez' BWC video (BR9), at timestamp 4:36, PO Martinez puts his arm outwards and tells § 87(2)(b) to not touch him. PO Zelman tells § 87(2)(b) to put his hands behind

PO Zelman's used the phrase "You will get Tased. You will fucking get Tased" at § 87(2)(b) at the time he was attempting to restrain § 87(2)(b) who was resisting. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

As such, it is recommended that **Allegation B** be closed as *substantiated*.

Allegation (C): Police Officer Ryan Zelman used physical force against § 87(2)(b)

§ 87(2)(b) stated (BR1) that she did not observe § 87(2)(b) while he interacted with PO Zelman, and other officers inside his bedroom because of her view of § 87(2)(b) was blocked by other officers present. When PO Zelman exited the bedroom § 87(2)(b) observed a lump on § 87(2)(b) forehead and a bruise on his arm. § 87(2)(b) did not have these physical injuries prior to the incident. § 87(2)(b) did not observe any officers striking him.

PO Zelman stated (BR3) that after he pushed § 87(2)(b) towards the bed and held him there, § 87(2)(b) resisted by tensing his body, kicking his legs, and slapping him. PO Zelman did not recall where § 87(2)(b) slapped him on his body. At this time, § 87(2)(b) upper body was positioned on the bed with his legs hanging off it.

PO Zelman positioned § 87(2)(b) so that his head was off the bed. PO Zelman placed himself on the floor and next to § 87(2)(b) head and shoulder. § 87(2)(b) tucked his right arm under his body so officers could not grab it. PO Lonergan climbed onto the bed and over § 87(2)(b) body and attempted to pull § 87(2)(b) right arm from under his stomach. PO Martinez was on PO Zelman's right side assisting and grabbing his arm. PO Zelman instructed § 87(2)(b) multiple times to place his hands behind his back. § 87(2)(b) refused and moved his body against the officers. § 87(2)(b) pulled his body away from PO Zelman and at this time PO Zelman punched § 87(2)(b) twice. PO Zelman struck § 87(2)(b) consecutively with a closed fist to the front of his head. PO Zelman stated that he struck § 87(2)(b) head because it was the only part of § 87(2)(b) body that was accessible to him, and he deemed it the minimal force to use to detain § 87(2)(b) at the time. § 87(2)(b) stopped tensing his body and PO Zelman and the other officers handcuffed § 87(2)(b) hands to his back. Afterwards, PO Zelman escorted § 87(2)(b) to the living room and observed bruising was on § 87(2)(b) left cheek and around the area of his nose.

PO Lonergan stated (BR2) that when he entered § 87(2)(b) bedroom, PO Zelman, PO Gonzalez, and PO Martinez attempted to restrain § 87(2)(b) who sat upright on the bed. § 87(2)(b) tucked both of his arms under his body. PO Lonergan did not recall if he gave § 87(2)(b) any verbal commands at this time but other officers gave § 87(2)(b) the instruction to put his hands to his back. § 87(2)(b) did not comply. PO Lonergan pulled § 87(2)(b) right arm to his back and the officers placed him in handcuffs. PO Lonergan did not witness PO Zelman or any officers strike § 87(2)(b) in the head or elsewhere.

According to PO Zelman's BWC video (BR9), at timestamp 4:45, PO Zelman instructs § 87(2)(b) to put his hands behind his back. At timestamp 4:50, PO Zelman instructs § 87(2)(b) to put his hands behind his back again and reaches under § 87(2)(b) for his right arm. At timestamp 4:56, § 87(2)(b) tells PO Zelman, "You just punched me." PO Zelman replies, "Yes, I did. Put your hands behind your back." The video did not capture PO Zelman's punches because they were not in the

frame. At timestamp 4:58, PO Lonergan pulls § 87(2)(b) right arm from under his body. At timestamp 5:05, officers handcuff § 87(2)(b). At timestamp 5:36, § 87(2)(b) says out loud, “Who punched me in the face?” PO Zelman replies, “I did.” § 87(2)(b) lunges at PO Zelman. At timestamp 6:38, PO Zelman picks up § 87(2)(b) and escorts § 87(2)(b) to the living room. At timestamp 9:15, PO Zelman tells § 87(2)(b) that he has to document and take pictures of bruises on § 87(2)(b) face.

According to PO Lonergan’s BWC video (BR9), at timestamp 5:02, PO Zelman appears to throw two punches at § 87(2)(b). The video does not capture where these blows land. At timestamp 5:52, PO Zelman tells PO Lonergan that § 87(2)(b) is restrained, and PO Lonergan lets go of § 87(2)(b).

The NYPD Patrol Guide Procedure 221-01 (BR12) states that when appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force. In situations in which this is not safe and/or appropriate, MOS will use only the reasonable force necessary to gain control or custody of a subject.

The Patrol Guide further states that, in determining whether the use of force is reasonable, members of the service should consider the following: a. The nature and severity of the crime/circumstances, b. Actions taken by the subject, c. Duration of the action, d. Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders, e. Whether the subject is actively resisting custody, f. Whether the subject is attempting to evade arrest by flight, g. Number of subjects in comparison to the number of MOS, h. Size, age, and condition of the subject in comparison to the MOS, i. Subject's violent history, if known, j. Presence of hostile crowd or agitators, k. Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

§ 87(2)(g) § 87(2)(b) stepped toward PO Martinez in the small confines of his bedroom. § 87(2)(g)

§ 87(2)(b) Prior to PO Zelman striking § 87(2)(b) twice, he had not attacked any officers in his brief physical resistance. § 87(2)(g)

§ 87(2)(b) was not arrested and did not attempt to flee at any time. The investigation acknowledges that § 87(2)(b) was a physically-built, young adult male; however, officers outnumbered him by a ratio of eight to one. The officers knew § 87(2)(b) was off his medication, but they did not know which ones. § 87(2)(g)

§ 87(2)(b) PO Zelman stated that he struck § 87(2)(b) with a fist twice only to gain compliance when § 87(2)(b) tensed his body, kicked his legs, and hid his arm from officers. § 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as *substantiated*.

Allegation (D): Police Officer Daniel Lonergan spoke discourteously to § 87(2)(b)

§ 87(2)(b) did not state (BR1) that PO Lonergan or any other officer spoke discourteously to § 87(2)(b) at any time.

PO Lonergan stated (BR3) that when he and other officers restrained § 87(2)(b) on his bed for the

second time after he pushed against PO Zelman, he told § 87(2)(b) “Are you out of your fucking mind, bro.” PO Lonergan stated that he said the phrase to § 87(2)(b) because he had tried to lunge at PO Zelman, and that he used profanity in the “heat of the moment”.

According to PO Lonergan’s BWC video (BR9), at timestamp 5:39, § 87(2)(b) tries to lunge towards PO Zelman. PO Zelman and PO Lonergan hold § 87(2)(b) still on the bed. § 87(2)(b) continuously lifts his head body in upwards position. PO Lonergan holds the back side of § 87(2)(b) head, pushes it downwards and asks § 87(2)(b) “Are you out of your fucking mind, bro.”

According to DCT Case No. 2015-15012 (BR11), officers are to behave professionally and respectfully toward members of the public and avoid the use of discourteous language; however, officers’ use of profanities during stressful encounters do not constitute misconduct. However, discourteous statements are prohibited when they serve no legitimate purpose but to belittle the civilian

PO Lonergan used the phrase, “Are you out of your fucking mind, bro,” when attempting to restrain § 87(2)(b) for the second time after § 87(2)(b) lunged himself at PO Zelman. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Therefore, it is recommended that **Allegation D** be closed as *substantiated*.

Allegation (E): Police Officer Ryan Zelman forcibly removed § 87(2)(b) to the hospital.

PO Zelman (PO2) and PO Lonergan’s statements (PO3) were mostly similar. They stated that they were informed by the dispatch that EMS was called to the location; however, an ambulance was not present at the time of the officers’ arrival. PO Zelman stated § 87(2)(b) did not appear coherent and “in the right mental state.” PO Zelman stated that § 87(2)(b) told him that the police were there to bother and harass him. PO Zelman stated that § 87(2)(b) did not request to go to the hospital and stated that he did not need to go to the hospital for a psychiatric evaluation. PO Zelman stated that it was normal for EMS and the police to respond to a job involving an emotionally disturbed person call. Both officers stated that their goal was to get § 87(2)(b) compliance and for him to speak with EMS. PO Zelman did not recall whether he was able to tell § 87(2)(b) that he wanted him to speak with EMS before § 87(2)(b) approached PO Martinez at the door.

Both officers stated that EMS arrived at the location when § 87(2)(b) was handcuffed and sitting in the living room. Both officers stated that at this time, EMS made the determination that § 87(2)(b) needed to be removed to the hospital.

According to PO Zelman’s BWC video (BR9), at timestamp 7:45, PO Zelman asks § 87(2)(b) who is in handcuffed and sitting in the living if he is injured. § 87(2)(b) tells PO Zelman, “Everything hurts.” At timestamp 10:04, EMS arrives in the living room. PO Zelman asks § 87(2)(b) why he is not taking his medication. § 87(2)(b) does not answer PO Zelman’s question, but instead tells him that he is being harassed by his mother, § 87(2)(b). At timestamp 10:44, § 87(2)(b) tells PO Zelman that the Covid-19 mask mandates are a part of the harassment campaign against him. At timestamp 11:03, § 87(2)(b) says that there is an EKG machine on his coffee table that can give him a heart attack. At timestamp 11:10, § 87(2)(b) tells PO Zelman that he has suffered heart attacks and is being “harassed by technology.” § 87(2)(b) tells PO Zelman that there are government officials involved in the harassment campaign. At timestamp 11:35, § 87(2)(b) randomly changes topic and tells the officers in the room, “I promise you that you guys will not be

remembered.” At timestamp 11:43, § 87(2)(b) speaks with an EMS worker. § 87(2)(b) tells the EMS worker that he is being harassed and that his phone is on a different server. At timestamp 12:03, the EMS worker asks § 87(2)(b) if there is anything bothering him medically. § 87(2)(b) tells the EMS worker that he is currently experiencing induced physical pain, in his head, ears, eyes, chest and feet. At timestamp 12:20, § 87(2)(b) tells the EMS worker, it feels like, “Somebody putting a fucking dildo up my ass.” At timestamp 12:30, the EMS worker tells § 87(2)(b) to go with him and to get evaluated by a doctor at a hospital. At timestamp 12:40, § 87(2)(b) tells the EMS worker that he did not need a doctor and that his pain is not a joke. At timestamp 13:05, § 87(2)(b) tells the EMS worker that there was a “focus group” that gathers data from him and puts in a cloud network that resulted in the closure of the company, Toys R Us. At timestamp 13:45, the EMS worker asks § 87(2)(b) to come with him to see a doctor. § 87(2)(b) tells the EMS worker that he needed to see a therapist instead. At timestamp 12:30, the EMS worker tells PO Zelman that there was no point to keep talking with § 87(2)(b). PO Zelman and the EMS worker escorts § 87(2)(b) into the ambulance.

According to NYPD Patrol Guide Procedure 221-13 (BR14), an emotionally disturbed person (EDP) is defined as a person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others. The Patrol Guide farther states that EDPs are to not be transported to a police facility, but should be taken to the hospital.

According to NYPD Patrol Guide Procedure 216-01 (BR13), uniformed members of the service shall cooperate with ambulance/hospital personnel in every reasonable manner.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
Throughout the incident, § 87(2)(b) spoke in a nonsensical manner and jumped from one topic to another. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

As such, it is recommended that **Allegation E** be closed as *exonerated*.

Civilian and Officer CCRB Histories

- § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- PO Zelman has been a member of service for four years and has been a subject in three CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)
§ 87(2)(g)
- PO Lonergan has been a member of service for eight years and has been a subject in three CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)
§ 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.

- As of November 22, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (BR17).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]

Squad: 15

Investigator:	<u>Jeffrey Tsui</u>	<u>INV Jeffrey Tsui</u>	<u>12/02/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Owen Godshall</u>	<u>SI Owen Godshall</u>	<u>11/30/2022</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date